

**DEPARTMENT THREE
JUDGE STEPHEN GIZZI
707-207-7303
TENTATIVE RULINGS SCHEDULED FOR
TUESDAY, JUNE 2, 2026**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30.

**LIBBY, et al. v. COSTELLO
Case No. CU24-04147**

Motion for Mandatory Relief to Vacate Dismissal of Action and to Reinstate Case

TENTATIVE RULING

Though Plaintiff counsel attempts to characterize this most recent nonappearance as a single incident undeserving of terminating sanctions, the record shows the entire case has been an ongoing demonstration of negligent representation by this firm. Earlier admonitions and sanctions imposed by the court did nothing to cause counsel(s) of record to correct their failures. Terminating sanctions is not something the court imposes without multiple incidents and good cause. Here, despite ample warning, plaintiff did not even respond to the OSC for terminating sanctions when issued on March 2, 2026. The Motion to Vacate the Dismissal is DENIED.

**KANDEL v. KIA AMERICA, INC., et al.
Case No. CU25-00796**

Application to Appear Pro Hac Vice

TENTATIVE RULING

The unopposed application of Cary A. Slobin, Esq. to appear pro hac vice for Defendants Kia America, Inc. and Kia Corporation is GRANTED.